

24SMCV06231 24SMCV06231

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-06-29

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Case Number: 24SMCV06231 Hearing Date: June 29, 2026 Dept: 205

Superior Court of California

County of Los Angeles

Beverly

Hills Courthouse | Department 205

MERCEDES-BENZ VEHICLE TRUST,

Plaintiff,

v.

TIM SOUNAKHEN;

ANTHONY JONES; and DOES 1 -10, inclusive,

Defendants.

Case No.: 24SMCV06231

Hearing Date: June 29, 2026

[TENTATIVE]

order RE:

DEFENDANT

ANTHONY JONES' motion for reconsideration

Background

This

action arises from a breach of a lease agreement. Defendant Tim Sounakhen (“Defendant”) entered into a Lease Agreement with non-party WI Simonson. The five-year Lease Agreement was for a 2021 Mercedes-Benz G63W4, Vehicle Identification Number: W1NYC7HJ3MX394177 (“Vehicle”). In the same Lease Agreement, WI Simonson assigned its interest to Plaintiff Mercedes Benz Vehicle Trust (“Plaintiff”).

Under

the lease agreement, Defendant agreed to pay Plaintiff and/or its successors a total sum of \$231,083.01, consisting of \$75,000 due at signing, followed by 59 months monthly payments of \$2,635.39 per month, starting on May 20, 2021 and ending on May 20, 2026. But Defendant defaulted on his lease payments.

In

the event Defendant fails to remit monthly payments, Plaintiff has the right to take possession of the Vehicle and to recover the outstanding residual of the lease plus costs, including attorneys’ fees and costs. As a result of Defendant’s failure to remit the required installment payments, Plaintiff has declared Defendant to be in default and declared the entire unpaid balance of the Agreement immediately due and payable, in the sum of \$147,560.40.

Defendant

relinquished possession of the Vehicle to Defendant Anthony Jones (“Jones”). Jones is in current possession of the Vehicle but refuses to surrender it to Plaintiff who is the legal owner of the vehicle.

This

action ensued. Plaintiff sues Defendant for breach of contract, claim and delivery and conversion. Plaintiff later amended its Complaint to substitute Jones for one of the Doe Defendants. The Complaint seeks damages of \$145,484.78, plus attorney’s fees and costs. It also seeks immediate possession of the Vehicle.

Plaintiff served

Jones with the summons and complaint on March 6, 2026, with a Notice and

Acknowledgment of Receipt. Jones signed the Notice and Acknowledgment of Receipt on or around March 12, 2026. Jones did not respond. Plaintiff sought entry of default against Defendant and Jones, which was entered by the Clerk of the Court on April 14, 2026.

On May 19, 2026,
the Court denied Jones' Motion to Set Aside default judgment.

On June 2, 2026,
Jones filed the instant motion for reconsideration of the May 19, 2026 Minute Order and renewed motion for relief from default. Jones also moves the Court to deem the proposed answer filed.

On June 12, 2026,
Plaintiff filed an opposition.

On June 23, 2026,
Jones filed a reply.

Legal Standard

Under Code of
Civil Procedure section 1008, subdivision (a), a party may seek reconsideration of an order, from the same judge, within 10 days of service of that order. The party must include an affidavit alleging changed facts, circumstances or the law. (Code Civ. Proc., § 1008, subd. (a).)

As it relates to new or
different facts, circumstances, or law under Code of Civil Procedure section 1008, subdivision (a), "the moving party must provide a satisfactory explanation for the failure to produce that evidence at an earlier time." (Shiffer v. CBS Corp. (2015) 240 Cal.App.4th 246, 255.) Furthermore, "facts of which the party seeking reconsideration was aware at the time of the original ruling are not "new or different." (In re Marriage of Herr (2009) 174 Cal.App.4th 1463, 1468.)

Analysis

Here, Jones has not set forth new facts or law to support his motion for reconsideration. Jones was personally served with the Summons and Complaint on March 6, 2026. Jones signed the Notice and Acknowledgement of Receipt on March 12, 2026. Jones then failed to file a responsive pleading within the statutory timeframe and default was entered on April 14, 2026. The Court denied Jones' Motion to Set Aside the Default on May 19, 2026. The Proposed Answer submitted does not "cure the defect," as Jones argues. (Mot., p. 4:13-24.)

Although the May 19, 2026 Minute Order points out the procedural defect of failure to provide a proposed responsive pleading along with the Motion to Set Aside, that was not the only reason for the Court's denial. The Court also found that Jones did not "point to any mistake, surprise, or excusable neglect." (May 19, 2026 Minute Order, p. 3.) Moreover, Default has been entered against Jones and the Motion to Set Aside the Default was denied; thus any Proposed Answer is void. For purposes of the Motion for Reconsideration, a Proposed Answer does not constitute new facts that were not available to the movant at the time of filing the prior motion.

Any alleged stipulation between the parties also does not constitute new or additional facts or law to support granting this Motion for Reconsideration. The stipulation entered into by the parties agreed to set aside Jones' August 5, 2025 default. However, Default was then entered against Jones again on April 14, 2026. Thus, the Stipulation Order does not apply to the April 14, 2026 Default and does not constitute new or additional facts to support Jones' Motion for Reconsideration, as this Stipulation Order was available to Jones at the time he filed his Motion to Set Aside.

Lastly, Jones' arguments that Plaintiff will suffer no prejudice from this matter proceeding on the merits does not satisfy Jones' burden of producing new or additional facts or law.

Jones failed to file a responsive pleading within the statutory timeframe and thus default was entered. The Motion to Set Aside Default was then denied by this Court and now Jones has failed to produce new facts or law to justify granting the instant Motion for Reconsideration.

Therefore, the Motion for Reconsideration is DENIED.

Conclusion

Defendant Anthony Jones' Motion for
Reconsideration is DENIED.

Dated: June 29, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court